

IAS PRELIMS/MAINS

Ecology & Environment

A stylized illustration of a green city skyline with various skyscrapers, wind turbines, and a sun, set against a light green background with a globe-like shape.

A COMPREHENSIVE COVERAGE

MODULE - 53

INDIA'S LAWS AND POLICIES - 1

1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

- The Environment (Protection) Act was enacted in the year 1986. It was enacted with the main objective to provide the protection and improvement of environment.
- The Act is one of the most comprehensive legislations with respect to protection and improvement of environment.
- From time-to-time various legislations have been enacted in India for the protection of environment but all legislations prior to the 1986 Act have been specific relating to specific aspects of environmental pollution.
- However, the 1986 Act was a general legislation enacted under Article 253 (Legislation for giving effect to international agreements) of the Constitution, pursuant to the international obligations of India. India was a signatory to the Stockholm Conference of 1972 where the world community had resolved to protect and enhance the environment.

Environment Protection Act 1986



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

OBJECTIVES

- To implement the decisions made at the UN Conference on Human Environment held at Stockholm in June, 1972.
- To enact a general law on the areas of environmental protection which were left uncovered by existing laws. The existing laws were more specific in nature and concentrated on a more specific type of pollution.
- To co-ordinate activities of the various regulatory agencies under the existing laws
- To provide for the creation of an authority or authorities for environmental protection



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

PROVISIONS OF ACT

- The Central Government shall have the power to take all such measures as it deems necessary for the purpose of protecting and improving the quality of the environment and preventing, controlling and abating environmental pollution.
- Such measures include
 - a) Co-ordination of actions by the State Governments, officers and other authorities
 - b) Planning and execution of a nation-wide programme for the prevention, control and abatement of environmental pollution.
 - c) Laying down standards for the quality of environment in its various aspects.
 - d) Laying down standards for emission or discharge of environmental pollutants from various sources whatsoever: Different standards for emission or discharge may be laid down from different sources having regard to the quality or composition of the emission or discharge of environmental pollutants from such sources.



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

PROVISIONS OF ACT

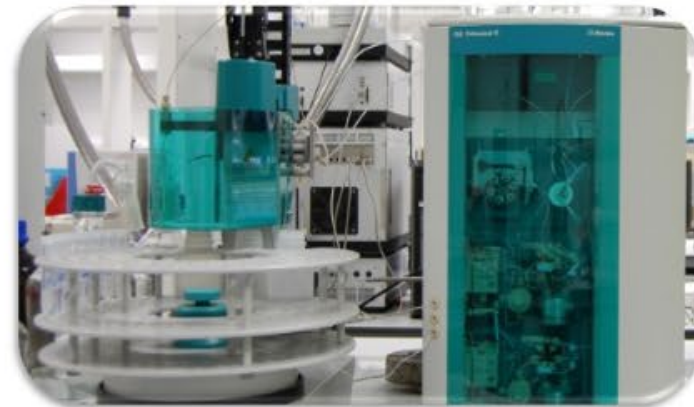
- e) Restriction of areas in which any industries, operations or processes or class of industries, operations or processes shall not be carried out or shall be carried out subject to certain safeguards.
- f) Laying down procedures and safeguards for the prevention of accidents which may cause environmental pollution and remedial measures for such accidents.
- g) Laying down procedures and safeguards for the handling of hazardous substances;
- h) Examination of such manufacturing processes, materials and substances as are likely to cause environmental pollution.
- i) Carrying out and sponsoring investigations and research relating to problems of environmental pollution.



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

PROVISIONS OF ACT

- j) Inspection of any premises, plant, equipment, machinery, manufacturing or other processes, materials or substances.
- k) Establishment or recognition of environmental laboratories and institutes to carry out the functions entrusted to such environmental laboratories and institutes under this Act.
- l) Collection and dissemination of information in respect of matters relating to environmental pollution.
- m) Preparation of manuals, codes or guides relating to the prevention, control and abatement of environmental pollution.
- n) Such other matters as the Central Government deems necessary or expedient for the purpose of securing the effective implementation of the provisions of this Act.



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

PREVENTION, CONTROL AND ABATEMENT OF ENVIRONMENT POLLUTION

- Chapter III of the EPA deals with prevention, Control and abatement of Environmental Pollution. Some important provisions of this chapter provide that
 1. No person carrying on any industry, operation or process shall discharge or emit any environmental pollutant in excess of such standards as may be prescribed.
 2. No person shall handle or cause to be handled any hazardous substance except in accordance with such procedure and after complying with such safeguards as may be prescribed.
 3. Where the discharge of any environmental pollutant in excess of the prescribed standards occurs due to any accident or other unforeseen act or event, the person responsible for such discharge and the person in charge of the place at which the discharge occurs shall be bound to prevent or mitigate the environmental pollution.

*The above-mentioned provision embodies the **Polluter Pays Principle**, which states that - any expense which has been incurred to restore the environment to its natural state shall be paid by the person who is responsible for such degradation.*

1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

SECTION 6 : RULES TO REGULATE ENVIRONMENTAL POLLUTION

- The Central Government may, by notification make rules in respect of the following matters
 - ✓ The standards of quality of air, water or soil for various areas and purposes.
 - ✓ The maximum allowable limits of concentration of various environmental pollutants (including noise) for different areas.
 - ✓ The procedures and safeguards for the handling of hazardous substances.
 - ✓ The prohibition and restrictions on the handling of hazardous substances in different areas.
 - ✓ The prohibition and restrictions on the location of industries and the carrying on of processes and operations in different areas.
 - ✓ The procedures and safeguards for the prevention of accidents which may cause environmental pollution and for providing for remedial measures for such accidents.



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

THE RULES OF 1989

- Using the powers of EPA 1986, the **MOEF** issued certain Rules in 1989 that deal with the **manufacture, usage, storage and trade of hazardous microorganisms/GMOs**.
- The Rules of 1989 also define the competent authorities and composition of such authorities for handling of various aspects of the Rules.
- Presently there are six committees -
 1. Recombinant DNA Advisory Committee (**RDAC**)
 2. Review Committee on Genetic Manipulation (**RCGM**)
 3. Genetic Engineering Appraisal Committee (**GEAC**)
 4. State Biotechnology Coordination Committee (**SBCC's**)
 5. District Level Committees (**DLCs**)
 6. Institutional Biosafety Committee (**IBSC**)



Ministry of Environment, Forest
& Climate Change

Bio 
Safety

1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

THE RULES OF 1989

1 RECOMBINANT DNA ADVISORY COMMITTEE (RDAC)

The functions are of an advisory nature and involve review of developments in biotechnology at national and international levels and recommend suitable and appropriate safety regulations for India in recombinant research, use and applications from time to time.



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

THE RULES OF 1989

2 REVIEW COMMITTEE ON GENETIC MANIPULATION (RCGM)

- Established under the Department of Biotechnology, Ministry of Science and Technology, the function is to monitor the safety related aspects in respect of on-going research projects and activities.
- RCGM brings out manuals of guidelines specifying procedure with respect to activities involving genetically engineered organisms in research, use and applications including industry.
- The Review Committee on Genetic Manipulation shall include representatives of (a) Department of Biotechnology (b) Indian Council of Medical Research (c) Indian Council of Agricultural Research (d) Council of Scientific and Industrial Research (e) other experts.
- All ongoing projects involving high risk category and controlled field experiments shall be reviewed by RCGM to ensure that adequate precautions and containment conditions are followed as per the guidelines.

1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

THE RULES OF 1989

3 GENETIC ENGINEERING APPROVAL COMMITTEE (GEAC)

- The committee functions under the MOEF&CC for approval of activities involving large scale use of hazardous microorganisms and recombinants in research and industrial production from the environmental angle.
- The Committee shall also be responsible for approval of proposals relating to release of genetically engineered organisms and products into the environment including experimental field trials.



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

THE RULES OF 1989

MAIN FUNCTIONS

- To permit the use of GMOs and their products for commercial applications.
- To restrict or prohibit, production, sale, import & use of GMOs both for research and applications under EPA.
- To authorize large-scale production and release of GMOs and products into the environment.



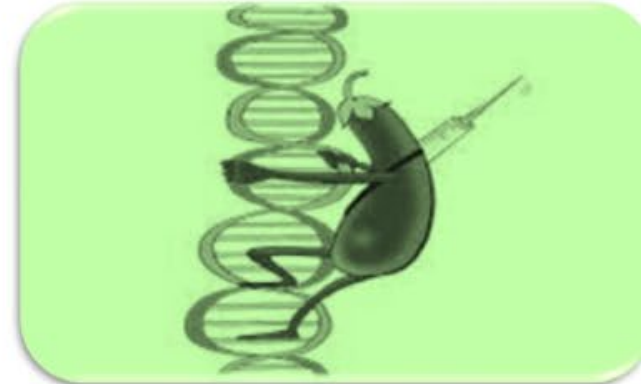
1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

THE RULES OF 1989

4 & 5

STATE BIOTECHNOLOGY COORDINATION COMMITTEE (SBCCS) AND DISTRICT LEVEL COMMITTEE (DLCS)

- These bodies have powers to inspect, investigate and take punitive action in case of violations.
- These Committees shall review periodically the safety and control measures in the various industries / institutions handling genetically engineered Organisms / Hazardous microorganisms.



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

4 & 5

STATE BIOTECHNOLOGY COORDINATION COMMITTEE (SBCCS) AND DISTRICT LEVEL COMMITTEE (DLCS)

THE RULES OF 1989

MAIN FUNCTIONS

- Powers to inspect, investigate and to take punitive action in case of violations of statutory provisions.
- To review periodically the safety and control measures in various institutions handling GMOs.
- SBCC acts as nodal agency at State level to assess the damage, if any, due to release of GMOs and to take on site control measures.
- These Committees coordinate the activities related to GMOs in the State with the Central Ministries.
- The committees also nominate State Government representatives in the activities requiring field inspection of activities concerning GMOs.



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

THE RULES OF 1989

6 INSTITUTIONAL BIO-SAFETY COMMITTEE (IBSC)

- This committee shall be constituted by the research institutions handling microorganisms/ genetically engineered organisms.
- It is the duty of the research institution to prepare with the assistance of the Institutional Biosafety Committee (IBSC) an up to date on-site emergency plan according to the manuals/guidelines of the RCGM and make available copies to the District Level Committee/State Biotechnology Co-ordinating Committee and the Genetic Engineering Approval Committee.
- The main function is to undertake visits of sites of experimental facilities periodically, where projects with biohazard potentials are being pursued to ensure that adequate safety measures are taken as per the guidelines.



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